

11. Parliamentary System of Government

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11.1 Introduction

- Democracy has two types of government: parliamentary and presidential.
- In the parliamentary system, the executive is part of the legislature. It makes and applies laws.
- The head of state can be a monarch or a president, but usually they only have ceremonial roles.
- The real power lies with the Prime Minister, who is the head of government.

11.2 Parliamentary Form of Government (India)

- The Parliament of India is the top law-making body.
- It has two houses: Rajya Sabha (Council of States) and Lok Sabha (House of the People).
- The President can summon or dissolve Parliament, but only on the advice of the Prime Minister and Council of Ministers.
- Members of Parliament (MPs) can be elected or nominated by the President.
- Lok Sabha MPs are directly elected by the people.
- Rajya Sabha MPs are elected by state legislatures through proportional representation.
- Strength of Parliament:
 - Lok Sabha → 545 members (including 2 from Anglo-Indian community nominated by the President).
 - Rajya Sabha → 245 members (including 12 nominated experts in science, art, and history).
- India follows a parliamentary system.

- Articles 74 & 75 → parliamentary system at the Centre.
- Articles 163 & 164 → parliamentary system in the States.
- Parliament meets at Sansad Bhavan, New Delhi.

11.3 Lok Sabha

- Lok Sabha is also called the House of the People or the Lower House.
- It has 545 members in total.
- Out of these, 543 members are directly elected by Indian citizens through voting.
- 2 members are appointed by the President of India from the Anglo-Indian Community.
- Every Indian citizen over 18 years of age (Article 326) can vote, irrespective of caste, religion, or gender, if not disqualified.
- The Constitution allows the maximum strength of Lok Sabha to be 552 members.
- Lok Sabha has a term of 5 years.
- To be a member of Lok Sabha:
 - The person must be an Indian citizen.
 - Minimum age should be 25 years.
 - Must be mentally sound, not bankrupt, and not convicted of a crime.

11.4 Rajya Sabha

- Rajya Sabha is also called the Council of States or the Upper House.
- It is a permanent body and cannot be dissolved.
- One-third of its members retire every two years and are replaced by new members.
- Each member has a term of 6 years.
- Members are indirectly elected by the legislative assemblies of the states.
- Rajya Sabha can have a maximum of 250 members.
- At present, it has 245 members:
 - 233 are elected from States and Union Territories.
 - 12 are nominated by the President (from fields like science, art, and literature).
- The number of members from each state depends on its population.
- Minimum age to become a Rajya Sabha member is 30 years.

11.5 Elements and Features of the Parliamentary System

Nominal and Real Head

- The head of state holds a ceremonial role and is the nominal executive (e.g., the President).
- In India, the Prime Minister is the real executive and head of government.
- Article 75 of the Indian Constitution says the Prime Minister is appointed by the President.

- According to Article 74, the Prime Minister and Council of Ministers advise the President in performing his functions.

The Executive is a Part of Legislature

- The Executive is part of the legislature.
- In India, ministers must be members of Parliament.
- If someone is appointed as a minister without being an MP, they must get elected within 6 months or they lose the position.

Majority Party Rule

- The party with majority seats in Lok Sabha forms the government.
- The President invites the leader of the majority party in Lok Sabha to form the government.
- The Prime Minister is appointed by the President, and ministers are appointed on the PM's advice.
- If no party has majority, the President may invite a coalition of parties to form the government.

Collective Responsibility

- The Council of Ministers is collectively responsible to Parliament.
- The Lok Sabha can dismiss the government by passing a no-confidence motion.
- The government stays in power only as long as it has the support of the majority in Lok Sabha.
- Thus, Lok Sabha has the power to remove the government.

Prime Minister as the Centre of Power

- In India, the Prime Minister is the real executive.
- He is the leader of the council of ministers and runs the government.
- The Prime Minister plays a very important role in decision-making and governance.

11.6 President of India

- The President has a high and respected role with special powers and safety given by the law.
- The Central Government is made up of the President and the ministers, with the Prime Minister as their leader. This is written in Articles 52 to 78 of the Constitution.
- The President is the Head of the State and the highest authority for carrying out laws.
- All decision and order of the government is officially issued under the President's name.
- According to Article 53, the President has all the government powers, but they don't use them directly. The Prime Minister and ministers use these powers.

- The President is the Head of the State and also the Commander of the Indian Armed Forces.
- On paper, the President looks very powerful.
- In reality, his role is like the British monarch (Governor General) before independence.
- The Constitution gives most powers to the Council of Ministers, not the President.
- The President cannot make decisions on his own; he must follow the advice of ministers.
- The President must act on the advice of the Prime Minister and Council of Ministers. They are the real executive.
- The post of the President is created by Article 52. Articles 54–60 explain elections and other matters.
- The President is chosen by an indirect election, not by the people directly. MPs and MLAs from all states vote to choose the President. Together they are called the Electoral College.
- Indirect election shows that real power is with ministers, not with the President.
- secondly, Direct election was avoided because it would be costly and energy consuming.
- There was also the fear that direct election could also make the President too powerful.
- Article 53 gives the President all executive powers, including control of the armed forces.
- The Constitution gives the President many specific duties and powers.
- One power is to appoint important officials like the Prime Minister, Governors, Judges of the Supreme/High Courts, and Election Commissioners.
- The President can send a bill back to Parliament once, but if it is passed again, he must agree.
- The President's powers are divided into four types:
 - Executive functions – Running the government, appointing officials.
 - Legislative functions – Related to laws and Parliament.
 - Judicial functions – Related to courts.
 - Emergency functions – Special powers during emergencies.

11.7 Executive Functions of President

- The President is the head of the government's executive (working) branch.
- The main job of the executive is to carry out the laws made by Parliament and maintain law and order.
- In modern times, the executive has many duties, such as maintaining law and order and protecting the country from foreign attacks. The executive works over a wide area and handles many functions.
- The central executive can also carry out executive functions in areas related to the Parliament, and also functions agreed upon by the Government of India through any treaty or agreement.

A few provisions in the Constitution give the President some specific executive powers such as:

- Power to make important appointments like Prime Minister, Central Ministers, Governors, Judges of the Supreme Court and High Courts, Chairman and members of UPSC, Attorney General, Chief Election Commissioner and other Election Commissioners, and the Comptroller and Auditor General of India.

- Power to appoint commissions like the Finance Commission and the National Commission for Scheduled Castes and Scheduled Tribes.

- Power to sign contracts on behalf of India.

- Power to give instructions to states in certain cases.

- According to Article 53, the executive power of the Union is with the President. He may use this power directly or through officers, but always under the Constitution.
- Sometimes there is confusion about this power because the Constitution does not clearly define the term 'executive power'.
- The executive cannot act against a law or go beyond what the law allows. If a law exists on a matter, the executive must follow it.

11.8 Judicial Powers of President

- The President appoints judges of the Supreme Court and High Courts under Article 124(2) and 217(1).
- The President has the power to pardon under Article 72. This includes the power to suspend, reduce, or cancel punishments.
- The President can use this power in cases decided by a Court Martial.
- The President can use this power in cases involving laws related to Union powers.
- The President can use this power in cases of death sentences.
- A pardon is not a person's right. It is an act of mercy by the President. A pardon clears the person of all punishment and legal consequences of the crime.
- The President can reduce a death sentence to a lower punishment after reviewing the case facts.
- The courts can review the President's use of pardon if it is found to be based on bad intention or political revenge.

11.9 Legislative Powers of President

- The President shares law-making powers with Parliament through different functions.
- The President and Council of Ministers take part in the law-making process. The President can call or end Parliament sessions, dissolve the Lok Sabha, pass a bill, and give approval for it to become law.
- The President's approval is needed for some State laws under Article 288(2).
- In some cases, the President's recommendation is required before a bill is introduced in Parliament.
- The President's recommendation is required for bills related to altering or creating new states (Article 3).
- A Money Bill cannot be introduced without the President's recommendation (Article 117(1)).
- Bills that involve spending money from the Consolidated Fund of India need the President's approval.

- Bills related to taxes that affect states also need the President's approval.

Ordinance Making Power:

- The power to make ordinances is the most debated power of the President.
- Normally, only Parliament can make laws.
- Article 123 gives the President power to make ordinances when Parliament is not in session and there is an urgent need.
- Ordinances cannot be made if both Houses of Parliament are in session. They can be made if one House is not in session and urgent action is needed.
- This power is unique to India. No such power is given to executives in Britain or the USA.
- Dr. Ambedkar explained that ordinances are necessary when urgent situations arise and Parliament is not in session. It allows the executive to act quickly until Parliament meets.
- Article 123 says ordinances must be approved by Parliament when it meets again.